

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Bench

Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

CRIMINAL PETITION FOR LEAVE TO APPEAL NO. 1042 OF 2025

(Against Judgment dated 12.05.2025 passed by the Lahore High Court, Lahore in Criminal Appeal No. 28362/2022)

Younas Masih

... Petitioner(s)

Versus

The State

...Respondent(s)

For the Petitioner: Mr. Umar Hayat Bhatti, ASC

For the Complainant: Mr. Muhammad Yasin Bhatti, ASC

For the State: Mr. Tariq Siddique, APG, Pb.

Assistance: Mr. Muhammad Subhan Malik, JLC, SCP

Date of Hearing: 12.05.2026

JUDGMENT

Salahuddin Panhwar, J. The petitioner, Younas Masih son of Hameed Masih, resident of Girja Colony, Sheikhpura, calls in question the judgment dated 12.05.2025 passed by a learned Division Bench of the Lahore High Court, Lahore, in Criminal Appeal No. 28362 of 2022 and Capital Sentence Reference No. 08-ARA-2022. By the impugned judgment, the learned High Court dismissed the appeal, answered the capital sentence reference in the affirmative, and maintained the conviction and sentence of death recorded by the learned Additional Sessions Judge, Gender-Based Violence Court, Sheikhpura, vide judgment dated 21.04.2022, in case F.I.R No. 803 of 2021, registered under Section 376(iii) of the Pakistan Penal Code, 1860, at Police Station Housing Colony, District Sheikhpura. Hence this petition for leave to appeal has been preferred against the judgment of the High Court. The victim is a child. Her name appears in the record, but it is neither necessary nor proper to reproduce it in a judgment meant to enter the public domain. In order to preserve her dignity, honor, privacy and anonymity, and to avoid renewed social injury through judicial repetition of her identity, she shall be

referred to in this judgment as M. We have heard this petition conscious that it brings before the Court the two interests which the criminal law guards most jealously: the liberty, and indeed the life, of a citizen who stands convicted, and the protection of a child to whom the law of this country owes its most vigilant care. Neither interest yields to the other by force of emotion. Both are served by one and the same instrument, namely a strict and honest appraisal of the evidence according to law, and it is to that task that this judgment is devoted.

2. The prosecution case originated from the written application Ex. PJ moved by Shaghufra Rafique, PW-6, the widowed mother of M and respondent No.2 in the leave petition. She stated that M, about ten years of age and a student of Class 5 at Government Girls High School, Housing Colony, Sheikhpura, had become subdued, frightened and unwilling to go to school. Upon being questioned on 11.10.2021 in the presence of Rana Khizar Hayat, PW-8, a Child Protection Focal Person, M disclosed that on 08.10.2021 at about 07:00 a.m., the petitioner, who was serving in the school as a sweeper, took her to a secluded part of the school premises, threatened her and committed rape upon her. The record describes the place at one stage as a room and, in the testimony noticed by the learned High Court, as the washroom. The variance is one of description of the secluded place within the same school premises. It is not a variance as to the school, the time, the accused, the character of the act, or the child who suffered it. A criminal case does not fail merely because a child, or the adults reporting her disclosure, use different expressions for a concealed place within an institution. The legally material question is whether the core account remains intact. In the present case, it does. FIR No. 803 of 2021, Ex.PA, was registered on 11.10.2021. The investigation was conducted by Sohail Yousaf, T/SI, PW-5, who visited the place of occurrence, prepared the unscaled site plan Ex.PE, recorded statements of witnesses under Section 161 Cr.P.C., procured the medico-legal examination of the child on the same day, and arrested the petitioner on the same day. On 13.10.2021, DNA related proceedings regarding the victim and the petitioner were undertaken. Upon completion of investigation, a report under Section 173 Cr.P.C. was submitted before the learned Trial Court.

3. The learned Trial Court framed charge under Section 376(iii) PPC. The prosecution examined twelve witnesses and produced, among other material, the medico-legal certificate Ex.PK and the DNA and Serology Analysis Report Ex.PN of the Punjab Forensic Science Agency. The petitioner, in his statement under Section 342 Cr.P.C., denied the allegation and alleged false implication on account of a quarrel at the main gate of the school. He neither appeared as his own witness under Section 340(2) Cr.P.C. nor produced evidence in defence. The learned Trial Court convicted the petitioner under Section 376(iii) PPC and sentenced him to death, with fine of Rs. 300,000 and, in default of payment of fine, simple imprisonment for six months. Compensation of Rs. 100,000 was directed to be paid to M under Section 17 of the Anti-Rape (Investigation and Trial) Act, 2021, recoverable as arrears of land revenue. The petitioner was also held entitled to the benefit of Section 382-B Cr.P.C. The conviction and sentence were maintained by the learned High Court.

4. Learned counsel for the petitioner has argued that the PFSA report Ex.PN records absence of seminal material on the vaginal and anal swabs and that this feature destroys the charge of penile penetration. It is further argued that the occurrence was alleged to have taken place in a crowded school, yet no independent eye-witness came forward. Learned counsel also relies upon the alleged delay of three days and six hours in reporting, the statement under Section 164 Cr.P.C., Ex.PM, certain portions of cross-examination, alleged contradictions between witnesses, alleged non-proof of forensic material, alleged fabrication of proceedings, and the plea that the medical report was procured in collusion with the police and the medical officer. Learned Additional Prosecutor General, Punjab, and learned counsel for respondent No.2 have supported the concurrent findings. They submit that the testimony of M is natural, consistent, childlike and confidence-inspiring; that the absence of semen is not a legal answer to the charge; that the medical findings corroborate the child in material particulars; that the delay is explained by the age of the victim, her dependence upon adults, and the social consequences attached to disclosure of sexual violence; and that the plea of false implication is a bare assertion unsupported by any evidence. Four principal questions arise. First, whether M, PW-7, was competent to testify and whether her testimony is reliable enough to

sustain conviction. Secondly, whether the medical evidence and the PFSA report create a reasonable doubt. Thirdly, whether the delay in registration of the FIR is fatal. Fourthly, whether, upon maintaining conviction, the sentence of death should stand or be converted to imprisonment for life.

5. Every criminal case begins with the presumption of innocence. It is not lessened by the gravity of the charge, nor by the youth of the victim, nor by the natural revulsion the offence excites. It is displaced only by lawful evidence proving the charge beyond reasonable doubt. Under Article 117 of the Qanun-e-Shahadat Order, 1984, that burden lies upon the prosecution throughout, and an accused need prove nothing. A weak or false defence may reinforce an inference already arising from the prosecution evidence, but it cannot supply what that evidence lacks. Proof beyond reasonable doubt does not mean proof beyond every imaginable possibility. A doubt is reasonable only if it arises from the evidence, or from a material gap in it, and would make a prudent person hesitate in a serious matter; a fanciful possibility dressed in forensic language is not such a doubt. Where a reasonable doubt exists, its benefit is the right of the accused, not a favor. As this petition arises from a sentence of death, the duty of independent reappraisal is at its highest: the concurrent findings of the two courts below command respect, but the life of a citizen cannot rest upon deference, and this Court must satisfy its own conscience on guilt and, separately, on sentence.

6. A word on method. The evidence is to be read neither with suspicion of the child nor with sympathy for her, but with discipline. The expression lived reality does not replace proof with social context; it means only that inferences from proved facts must be drawn with a realistic understanding of the setting in which they occurred. It is a discipline of reasoning, not a shortcut to proof, and it is long established in the common law.¹ It works in three stages: first, what does the record establish; secondly, what inferences may fairly be

¹On disciplined evidence construction and the expression lived reality as an evidentiary method, see Cr.A No. 11-M/2025, Peshawar High Court, Mingora Bench, Dr. Khurshid Iqbal J., 22.04.2026, paras 23-28. For the like method in comparative jurisprudence, see *R. v. Lavallee* [1990] 1 SCR 852 (Supreme Court of Canada), per Wilson J., admitting contextual evidence to correct stereotype-driven inference without disturbing the burden or the standard of proof; and *R. v. Barton*, 2019 SCC 33, on the duty of courts to guard against reasoning from myths and stereotypes in trials of sexual violence.

drawn from it in the light of ordinary human conduct; and thirdly, do those inferences satisfy the criminal standard. Context bears only on the second stage; it neither creates evidence at the first nor lowers the standard at the third. Two features of this case call for such realism. First, a school is public only in that many attend it; it has secluded corners, and a person with access may choose them precisely because they are hidden within a busy place, so innocence cannot be inferred merely because the institution was populated. Secondly, a child of ten and an adult employee are not equal; fear, confusion and obedience are natural, and immediate resistance or instant complaint is no precondition to belief. The discipline cuts both ways: the same realism which explains a child's silence equally requires the Court to test, with full rigour, whether any alleged motive to fabricate is proved on the record rather than merely asserted. A child witness is neither disbelieved because she is a child nor believed merely because she is one; her evidence is tested for competence, coherence, consistency on essentials, freedom from tutoring, and the presence or absence of a credible motive to lie.

7. Competence is governed by Article 3 of the Qanun-e-Shahadat Order, 1984. Every person is competent to testify unless the Court finds that tender years, old age, or disease prevents him from understanding the questions or giving rational answers. Competence is thus the rule, and the test is the capacity to understand and to answer, not maturity equal to an adult's.² The learned Trial Court held a voir dire and, after questioning M about her school, her class and her surroundings, recorded that she understood the questions and answered rationally. That was the proper inquiry. This Court has long held the evidence of a competent child witness sufficient to sustain a conviction, even on a capital charge: see *Farman Hussain*, and *Raja Khurram Ali Khan*, where the Court, noting the undue hesitation that had attended the evidence of child witnesses, reaffirmed that a child found competent under Article 3 may be relied upon and must be treated with care.³ The position is the same in

²Article 3, Qanun-e-Shahadat Order, 1984. For comparative evidentiary treatment of child competence, see Sidney N. Lederman, Alan W. Bryant and Michelle K. Fuerst, *Sopinka, Lederman and Bryant: The Law of Evidence in Canada*, 4th ed., LexisNexis Canada, 2014, pp. 884 and 886-890.

³*The State through Advocate General, Sindh, Karachi v. Farman Hussain and others* (PLD 1995 SC 1); and *Raja Khurram Ali Khan and another v. The State* (PLD 2020 SC 146), per Yahya Afridi, J.

other common law jurisdictions, where competence turns upon the child's capacity to understand and to respond, not upon any minimum age.⁴ Competence, however, only admits the evidence; it does not fix its weight. That depends upon the substance of the testimony, the manner of its testing, and the support it draws from the surrounding facts. Admissibility must not be confused with reliability.

8. The testimony of M has a firm core. She identified the petitioner, placed the occurrence in the school, and stated that he took her to the washroom, removed her clothes, slapped her when she resisted, threatened her, and committed the act. These go to identity, place, force, resistance, threat and the nature of the assault, and on them her account was not shaken. That her narration was restrained does not weaken it: a child who has suffered sexual violence may not repeat graphic detail in open court, and the law does not require her to do so as the price of belief. In other common law jurisdictions too, a contradiction on a peripheral matter such as time or place is not given the weight it would carry in an adult, and a young child's account of a sexual matter beyond her ordinary experience carries its own stamp of reliability.⁵ Here the substance remained stable; the record shows no repeated or inconsistent interviews, nor any circumstance from which tutoring or contamination could be inferred. The disclosure followed the change in the child's behavior that her mother noticed and was made before PW-8, the Child Protection Focal Person, and cross-examination drew out no material contradiction.⁶ It is right to

⁴*R. v. Barker* (also reported as *R. v. B.*) [2010] EWCA Crim 4 (Court of Appeal of England and Wales, per the Lord Chief Justice of England and Wales, Lord Judge), construing section 53 of the Youth Justice and Criminal Evidence Act 1999; *R. v. Marquard* [1993] 4 SCR 223 (Supreme Court of Canada), per McLachlin J.; and section 16.1 of the Canada Evidence Act, R.S.C. 1985, c. C-5, inserted by S.C. 2005, c. 32, presuming the capacity of a child under fourteen to testify and directing that such evidence be received, upon a promise to tell the truth, if the child is able to understand and respond to questions.

⁵*R. v. W. (R.)* [1992] 2 SCR 122 and *R. v. B. (G.)* [1990] 2 SCR 30, on the assessment of a child's testimony by reference to criteria appropriate to the child; and *R. v. Khan* [1990] 2 SCR 531, on the special reliability of a young child's account of sexual matters (all Supreme Court of Canada, per McLachlin J.). For the statutory abolition of the corroboration rules, see section 34 of the Criminal Justice Act 1988 and section 32 of the Criminal Justice and Public Order Act 1994 (England and Wales); the corresponding Canadian reforms of 1988 are discussed in *R. v. W. (R.)*, above.

⁶Michael R. Leippe, John C. Brigham, Catherine Cousins and Ann Romanczyk, in S.J. Ceci, D.F. Ross and M.P. Toglia, eds, *Perspectives on Children's Testimony*, Springer-Verlag, 1989, p. 121; David C. Raskin and John C. Yuille, in the same volume, pp. 189 and 201; Judy Cashmore, in Helen L.

record that a child of ten faced a courtroom, and the man she accused, and did not waver on what mattered; the Court does not mistake sympathy for proof, but neither will it withhold recognition of that fortitude. Nor is any motive shown for a child of ten to invite the stigma, the medical examination and the ordeal of a false charge of rape, and none was even laid as a foundation. The absence of an independent eye-witness is no anomaly, for such offences are committed away from view, and the proforma rightly records eye-witnesses as nil. This Court has repeatedly held that the confidence-inspiring testimony of a victim of sexual assault may by itself sustain a conviction, corroboration being a rule of prudence and not of law, and that such a victim stands upon a higher pedestal than an injured witness.⁷ Her testimony does not, in any event, stand-alone: it is supported by her immediate change of behavior, her disclosure to her mother, and the medical findings.

9. The medical evidence must be approached with equal precision. Dr. Dabeera Masood, PW-9, examined M on 11.10.2021, whereas the occurrence was alleged on 08.10.2021. The interval was about three days. The medical material used the expression old vaginal intercourse or penetration. In the case of a ten-year-old child, such an expression is clinically imprecise unless the expert explains the basis, the time frame, and the limits of the opinion. A forensic descriptor must not be converted into a moral judgment or a conclusion about prior sexual history. What matters first is the observations. PW-9 observed scratch marks and abrasions on the inner portion of the right breast and the mid portion of the left breast. Upon local examination she found ruptured hymen and redness and swelling around the vaginal introitus. These are observed clinical facts. Dr. Bilal Khalid, PW-11, examined the petitioner on 14.10.2021 and found him potent. The potency test does not prove commission of the offence, but it removes incapacity as a defence. The Court must

Westcott, Graham M. Davies and Ray H.C. Bull, eds, *Children's Testimony*, John Wiley and Sons, 2002, pp. 207 and 215.

⁷*Atif Zareef and others v. The State* (PLD 2021 SC 550), per Syed Mansoor Ali Shah, J.; *Shakeel and others v. The State* (PLD 2010 SC 47); *Muhammad Akram v. The State* (PLD 1989 SC 742); and *Shahzad alias Shaddu and others v. The State* (2002 SCMR 1009). See also *The State v. Abdul Khaliq* (PLD 2011 SC 554), that independent ocular evidence being usually unavailable, due weight is to be given to the statement of the victim when buttressed by medical evidence and the attending circumstances.

not treat hymenal rupture alone as conclusive proof of rape. Equally, it must not isolate that finding from the rest of the evidence. Here, the medical picture is not a solitary hymenal observation floating without context. It consists of breast abrasions, vaginal redness, swelling, hymenal rupture, a child account of force and sexual assault, and examination within a period consistent with the reported timeline. The probative value lies in the constellation, not in any one medical phrase.⁸ PW-9 made generic concessions in cross-examination that hymenal rupture may occur due to playing or heavy exercise in a child of ten years and that redness and swelling may be caused by an organ or article other than the penis. These concessions show theoretical medical possibilities. They do not show what happened to M. The defence did not place any evidence of heavy exercise, accident, gymnastics, disease, self-infliction, or any specific non-sexual mechanism. A theoretical possibility does not mature into a reasonable doubt unless it is connected to facts on the record. The correct question is not whether some other cause is medically imaginable. The correct question is whether, on the evidence of this case, some other cause is reasonably indicated. There is a difference between possibility and probability; and there is a further difference between probability and reasonable doubt. The concessions of PW-9 remain at the first level only. They do not displace the child account or the corroborative medical observations. Learned counsel attacked the medical report as procured through collusion with the police and the medical officer. No evidence supports this serious allegation. No circumstance was established to show that PW-9 was acting under influence, that the examination was fabricated, that the injuries were planted, or that the medico-legal record was manipulated. Allegations of professional dishonesty against a medical officer cannot be accepted merely because they are made. They must be proved or at least supported by material capable of raising doubt. The record contains no such material. It was also argued in the petition grounds that the forensic reports were not proved in accordance with law and were tendered illegally. The argument was not developed into any

⁸Robert R. Hazelwood and Ann Wolbert Burgess, eds, *Practical Aspects of Rape Investigation: A Multidisciplinary Approach*, 5th ed., CRC Press, 2017, pp. 252-262, especially p. 260; Anthonio O. Adefuye, Chika K. Egenasi and Matthew O.A. Benedict, Forensic evidence preservation following an incident of rape: The role of the victim, *South African Family Practice* 66(1), 2024, article a5776, pp. 1-5.

specific legal infirmity capable of excluding Ex.PN from consideration. More importantly, the defence itself relies upon the same PFSA report for the negative semen finding. A party cannot invite the Court to treat a document as reliable where it appears helpful and inadmissible where it does not. The document must be read as a whole and in its proper evidentiary place. Expert evidence, whether medical or forensic, assists the Court. It does not decide the case in substitution for the Court. Science may be valid, but its application depends upon collection, preservation, time, handling, testing and interpretation. The Court must separate the reliability of the scientific method from case-specific limitations in the sample or process. That is why medical observations, medical opinions, laboratory results and legal conclusions must be kept in separate compartments.⁹

10. The PFSA report Ex.PN records absence of seminal material on the vaginal and anal swabs. This fact is important, but it is not decisive. The offence of rape does not require proof of ejaculation. Nor does the law require detection of semen as a condition precedent to conviction. Biological recovery is time-sensitive and can be affected by the interval between occurrence and examination, the nature of the act, non-ejaculation, condom use, preservation issues, cleaning and other variables. The absence of semen, therefore, is a limitation upon biological recovery, not proof that the assault did not occur. The Court must define the inference narrowly. This judgment does not treat any unproved forced bathing or washing as an established fact of this case. The finding is limited to what the record safely supports: the examination was not immediate; the PFSA report was negative for semen; the medical observations were otherwise present; and the child account remained direct and credible. In that totality, the negative semen report does not create reasonable doubt. While a DNA report is regarded by this Court as a gold standard for the establishment of identity, and a strong corroborative piece of evidence, the absence of biological material, where it is explained by the interval and the circumstances of the case, does not displace a direct and confidence-inspiring account; and in *Abdul Chann* this

⁹Paul C. Giannelli, *Understanding Evidence*, 3rd ed., Matthew Bender and LexisNexis, 2009, pp. 321, 325, 347 and 374; David L. Faigman, Evidence: Admissibility vs. Weight in Scientific Testimony, *The Judges' Book*, vol. 1, article 11, 2017, pp. 45-49; Richard Glover and Peter Murphy, *Murphy on Evidence*, 13th ed., Oxford University Press, 2013, p. 419.

Court observed, in substance, that negative reports do not necessarily destroy the prosecution case where the victim account and other convincing evidence establish the offence.¹⁰ That principle applies with force here. To pin a rape case exclusively to forensic findings would allow the absence of a biological trace to defeat reliable ocular and medical evidence even where the nature of the offence and the timing of examination explain the limitation. Criminal adjudication must value science, but it must not surrender judgment to a single negative laboratory result.

11. The defence argument based on the delay in FIR requires a separate treatment. The occurrence was alleged to have taken place on 08.10.2021 at about 07:00 a.m. The FIR was registered on 11.10.2021. On its face there is delay. In many categories of criminal cases unexplained delay may provide room for deliberation, consultation and false implication. But delay is not an abstract formula. Its legal effect depends upon the nature of the offence, the identity and age of the victim, the social setting, the conduct of the informant, and the explanation emerging from record. Learned counsel relied upon the statement under Section 164 Cr.P.C., Ex.PM, and parts of cross-examination to contend that the child had told about the occurrence to the principal, her mother and another teacher on the same day. Even if the material is read at its highest for the defence, it does not show that a complete, legally actionable and uninhibited disclosure was made on 08.10.2021 and then deliberately suppressed for three days. At best, it suggests a fragmented and confused institutional reception of what had happened to a frightened child. That conclusion is fortified by the deposition of the victim available on record. In her recalled cross-examination recorded on 12.03.2022, M stated that she had told the school principal about the occurrence and had also told another teacher, namely Miss Yasmeen. She further stated that the principal did not take her anywhere; that she lost consciousness; that, upon

¹⁰*Abdul Chann v. The State through P.G. Balochistan and another* (2022 SCMR 544). On a DNA report as a gold standard for the establishment of identity, and as corroborative rather than determinative, see *Atif Zareef and others v. The State* (PLD 2021 SC 550); *Salman Akram Raja v. Government of Punjab* (2013 SCMR 203); and *Ali Haider alias Papu v. Jameel Hussain and others* (PLD 2021 SC 362); and *Atta ul Mustafa v. The State* (2023 SCMR 1698), holding that a DNA report cannot be treated as primary evidence and may be relied upon only for corroboration. See also David E. Newton, *DNA Evidence and Forensic Science*, Facts On File and Infobase Publishing, 2008, pp. 43-46 and 249.

regaining consciousness, a drip was administered to her in a vacant room inside the school and not in a hospital; and that her mother was not present when the drip was so administered. She also stated that her mother brought her home from school on the day of occurrence. PW-10, Rabia Aslam, SST, deposed that, after the occurrence, charge of Principal was handed over to her when Miss Saleema was surrendered by order of the Chief Executive Officer (Education), Sheikhpura; that she produced the attendance sheet showing M present in Class 5 on 08.10.2021; and that, in cross-examination, she stated that no complaint had been made before her by the victim, the victim's mother, students or staff, although she herself was present in school on the day of occurrence. Read together, these facts do not merely explain delay on the part of a frightened child and her mother; they also disclose an institutional silence after the matter had come to the notice of school personnel and after medical aid in the form of a drip had been administered within the school premises. Without travelling beyond the record, the safe legal inference is that the delay must also be viewed in the light of the conduct of the school administration, which appears to have contained the matter within the institution instead of promptly reporting it to the police. A child victim and her mother cannot be prejudiced by such institutional reticence, particularly where the silence appears connected with the perceived reputation of the school rather than with any legal obstacle to immediate reporting. The mother, PW-6, was a widow and a household woman. She did not receive a formal legal complaint from an adult witness. She observed behavioral change in a child, questioned her, and upon disclosure moved the law into motion. It would be artificial to expect from such a mother the immediacy expected from a trained official. The standard of conduct is not that of an ideal police officer; it is that of a dependent parent confronted with the most difficult disclosure concerning her child. In sexual offences, particularly involving children, silence and delay can be produced by fear, shame, confusion, dependence, family pressure, apprehension of stigma, and the inability of a child to articulate the wrong. Trauma may affect memory, sequence, confidence and willingness to speak.¹¹ These realities explain delay; they do not

¹¹Betsy McAlister Groves, *Children Who See Too Much: Lessons from the Child Witness to Violence Project*, Beacon Press, 2002, pp. 35, 38, 41 and 144; Alicia Summers, *Children's Exposure to*

themselves prove the charge. The charge is proved, if at all, by evidence. In this case, the explanation for delay is supported by the pattern of behavioral change, disclosure upon questioning, and prompt registration after that disclosure. Pakistani authority also recognizes that delay in rape cases must be considered in its social context and that honor, stigma and fear may explain hesitation in reporting.¹² The principle is not that delay is always immaterial. The principle is that delay is not fatal when it is satisfactorily explained by circumstances appearing from the record. The present case falls within that principle. The FIR was not lodged after a long unexplained silence by an adult complainant possessed of full knowledge. It was lodged after the child disclosed the assault to her mother in circumstances which explain why immediate public reporting did not occur. Once disclosure was made, the mother approached the police. The delay therefore does not create reasonable doubt.

12. The plea of false implication is equally weak. The petitioner asserted that he was falsely involved on account of a quarrel at the school gate. He did not prove the quarrel. He did not examine any witness from the school, the locality, or his own side. He did not place any document on record. He did not appear under Section 340(2) Cr.P.C. to subject himself to cross-examination. Nor was it shown that this plea formed part of his first version before the investigating officer. Even assuming some quarrel existed between adults, the missing link remains fatal to the defence. What reason did M, a ten-year-old child, have to submit herself to medical examination, public stigma and the ordeal of a criminal trial in order to settle an adult quarrel with a sweeper of the school? The defence offers no answer. A motive for adults, even if assumed, is not automatically a motive for a child victim. The bridge must be built by evidence. It has not been built. This accords with the principle, stated in the opinion of Ayesha A. Malik, J. in *Muhammad Imran v. The State*, that a bare plea of false implication, which is not put to the victim in cross-examination and is not advanced through a statement on oath under Section 340(2)

Domestic Violence: A Guide to Research and Resources, National Council of Juvenile and Family Court Judges, 2006, pp. 15, 18 and 21-25.

¹²*Mehboob Ahmad v. The State* (1999 SCMR 1102); *Zahid and another v. The State* (2020 SCMR 590); *Zahid v. The State* (2022 SCMR 50); *Habib Ullah v. The State* (2011 SCMR 1665); and *Hamid Khan v. The State* (1981 SCMR 448).

Cr.P.C. or through evidence in defence, does not dislodge a trustworthy and corroborated prosecution case.¹³ The allegation of fabrication of proceedings also does not bear scrutiny. The FIR, the medical examination, the site plan, the statements, the arrest, the medico-legal record and the PFSA report form a sequence. The defence has pointed to no specific manipulation which breaks that sequence. General allegations of collusion are not a substitute for proof. Courts must be vigilant against false implication, but vigilance does not mean acceptance of every unsupported insinuation. The argument based on contradictions likewise remains general. Minor variations are natural, especially where the principal witness is a child and the occurrence is traumatic. The law separates contradictions which strike at the root from discrepancies which arise from memory, language, time and the limitations of human narration. The alleged room and washroom variation has already been addressed. It does not affect identity, occurrence, force or the secluded nature of the place.

13. On the cumulative appraisal, the prosecution evidence proves that M was a competent witness; that her core statement was credible and materially consistent; that no plausible motive for false implication was established; that absence of an independent eye-witness is structurally consistent with the alleged offence; that medical evidence corroborates the central accusation; that the negative PFSA semen result is not exculpatory; and that the delay is satisfactorily explained. The Court is therefore satisfied, upon independent reappraisal and not merely by deference to concurrent findings, that the conviction under Section 376(iii) PPC is lawful and safe. The prosecution has brought the charge home to the petitioner beyond reasonable doubt. In reaching this conclusion the Court has not treated any single strand of evidence as self-sufficient. It is the combination that convicts. Each strand has been separately tested and separately found sound; woven together, they bear the full weight of the charge. That is the ordinary, and the only safe, method of judging proof in cases of this nature, where the offence is committed in seclusion and the law must rest upon the word of a child examined in the light of all that surrounds it.

¹³*Muhammad Imran v. The State* (PLD 2025 SC 662), per Ayesha A. Malik, J.

14. The remaining question is sentence. Section 376(iii) PPC provides alternative punishments: death or imprisonment for life, together with fine. The existence of alternatives is meaningful. It means that the legislature has not made death automatic. It has entrusted the Court with a sentencing discretion. That discretion must not be exercised by anger, by rhetoric, or by formula. It must be exercised judicially. Sentencing is the moment at which the law speaks not only to the offender but to the society in whose name punishment is imposed, and what it says must be worthy of the law that says it. The aggravating factors are grave. M was about ten years old. The petitioner was an adult. He was connected with the school premises. The offence occurred where the child was entitled to safety. The betrayal of institutional trust is manifest. The injury inflicted upon the child is not exhausted by the act itself; it enters memory, family life and social existence. These factors call for severe punishment. Yet the sentencing question is not whether the offence is grave. It plainly is. The question is whether death is the only legally warranted sentence. The learned High Court used the expression no mercy for merciless. Such a phrase captures moral outrage, but sentencing cannot rest on moral outrage alone. The Court is not an instrument of vengeance. It is an institution of law. Anger, however righteous, is a poor draftsman of judicial orders. Between vengeance and justice the law has always drawn a firm line: vengeance asks only what the offender deserves to suffer; justice asks, in addition, what the law permits, what proportion requires, and what a civilized State ought to do with the power of punishment that its people have committed to judicial hands. The more serious the offence, the more necessary it is that punishment should be reasoned, not reflexive. The record does not show that the petitioner was previously convicted, that he had a proven history of similar offences, that the child suffered a permanent physical disability, or that there existed any additional proven aggravating circumstance beyond those inherent in the conviction. These considerations do not reduce the seriousness of the crime. They bear only upon the statutory choice between death and life imprisonment. Imprisonment for life is not leniency. It is one of the gravest punishments known to law. It permanently marks the condemnation of society and the authority of the State. Where the statute permits life imprisonment, and where the record does not demonstrate that death alone is indispensable, the Court must

choose the punishment which is severe, lawful and proportionate, while avoiding irreversible excess. The irreversible nature of death is not an abstraction. It is the central reason why sentencing in capital matters requires a separate judicial inquiry even after guilt is proved. Conviction answers whether the accused committed the offence. Sentencing answers what the law, proportionately and justly, must do in response. These are related but distinct questions. The proof that sustains conviction does not automatically answer the sentencing discretion. Balancing the aggravating and mitigating features, this Court is of the view that the conviction must stand, but the sentence of death ought not to be maintained. The proper sentence is imprisonment for life, with the fine, default sentence and compensation maintained. This conclusion does not trivialize the offence. It reflects the statutory alternatives and the independent duty of judicial sentencing. Lest there be any misunderstanding, the Court states plainly what this order does and does not decide. It does not absolve the petitioner; his guilt stands proved beyond reasonable doubt, and the conviction is affirmed in unqualified terms. It does not diminish what was done to M, which no order of any court can undo, and to which this judgment has endeavored to do justice by belief founded upon evidence. It decides only that, as between the two punishments which the legislature has itself provided for this offence, imprisonment for life is the sentence which law, proportion and judicial conscience require upon the record of this case. Proportion, in sentencing, is not the abandonment of severity; it is the discipline of severity, and a court which observes that discipline does not weaken the law but keeps it worthy of obedience.

15. The Court does not part with this judgment without addressing certain matters of public importance which arise directly from its facts. The facts of the present case reveal a disturbing reality. A girl of merely ten years of age was not safe even within the environment of a school, a place expected to provide security, learning, and protection. Instead, she became a victim of sexual violence. The incident compels this Court to look beyond the individual prosecution and examine the wider question of the safety of girls in educational institutions and on their daily commute thereto. This Court cannot remain oblivious to the fact that acts of harassment, stalking, intimidation, and sexual misconduct often begin with conduct which

the law itself recognizes as criminal. Section 509 of the Pakistan Penal Code criminalizes conduct intended to insult the modesty of a woman, invade her privacy, or subject her to harassment. The provision is not merely punitive; it casts a corresponding obligation upon law-enforcement agencies to respond promptly and effectively whenever such conduct is reported. Early police intervention at the stage of harassment may prevent escalation into graver offences against women and children. The present occurrence demonstrates the consequences of societal and institutional indifference towards the safety of girls. If a child is not secure in an educational institution, or while travelling to and from it, the constitutional promise of education, dignity, equality, and personal security becomes illusory.¹⁴ The obligation of the State is therefore not confined to establishing schools and universities; it extends equally to ensuring that girls can attend them free from fear, intimidation, harassment, and violence.

16. Accordingly, all Provincial Inspectors General of Police and the Inspector General, Islamabad Capital Territory Police, shall devise and implement effective mechanisms for the protection of girls attending schools, colleges, and universities. Particular attention shall be paid to complaints of harassment under Section 509 PPC, stalking, and other precursor offences against women and children. Such complaints shall be treated seriously, investigated promptly, and acted upon without delay. Visible patrolling shall be ensured around educational institutions, public transport facilities, bus stops, and routes commonly used by female students. Preventive policing, rather than post-crime reaction, must become the governing principle in matters affecting the safety of girls.

17. The medico-legal function, which the record of this case shows to be pivotal in prosecutions for sexual offences, calls for equal attention. The quality of medico-legal examination, documentation, and testimony depends upon the existence of a trained, dedicated, and properly resourced medico-legal service. The Province of Sindh has taken a legislative lead in this field through the Sindh Medico Legal Act, 2023, which provides for a regulated medico-legal service, a directorate to oversee its administration, and criteria for the

¹⁴Articles 9, 14, 25 and 25-A of the Constitution of the Islamic Republic of Pakistan, 1973.

appointment of medico-legal officers.¹⁵ The Federal Government and the Provincial Governments may take benefit of that legislative model in constituting a dedicated medico-legal cadre, with a defined service structure, structured training in the forensic examination of victims of sexual violence, the appointment of women medical officers in adequate numbers, and institutional coordination with forensic science agencies. The learned Attorney General for Pakistan, the learned Advocate Generals of the Provinces, concerned Health Departments and Police authorities are directed to take note of the foregoing discussion for appropriate action and implementation in accordance with law.

18. Before parting with this judgment, we place on record our appreciation for the valuable research assistance rendered by Mr. Qaisar Abbas, Civil Judge and former Senior Research Officer of this Court, whose input materially assisted the Court in examining the issues involved.

19. For the reasons recorded above, this petition is converted into appeal and is partly allowed. The conviction of the appellant, Younas Masih, under Section 376(iii) PPC is maintained. The sentence of death is altered to imprisonment for life. The fine of Rs.300,000 (three hundred thousand) or, in default of payment thereof, simple imprisonment for six months, is maintained. The compensation of Rs.100,000 (one hundred thousand) payable to 'M' under Section 17 of the Anti-Rape (Investigation and Trial) Act, 2021, recoverable as arrears of land revenue, is also maintained. The petitioner shall have the benefit of Section 382-B Cr.P.C. The confirmation of death sentence in Capital Sentence Reference No. 08-ARA-2022, as maintained by the learned High Court, stands set aside to the extent indicated above. The name and identifying particulars of 'M' shall not be disclosed in any report, publication or broadcast of these proceedings or of this judgment.

20. The Registrar of this Court shall transmit a copy of this judgment to:

¹⁵The Sindh Medico Legal Act, 2023, providing inter alia for the establishment of the Sindh Medico-Legal Directorate, criteria for the appointment of medico-legal officers, a medical advisory board, and a forensic police surgeon.

- i) Registrars of all High Courts for circulation among the subordinate judiciary.
- ii) Attorney General for Pakistan.
- iii) Advocate Generals of all provinces, as well as Advocate General, Islamabad.
- iv) Prosecutor Generals of all provinces, as well as Prosecutor General, Islamabad.
- v) Inspector Generals of Police of all provinces, as well as Inspector General of Police, Islamabad.

Judge

Judge

Judge

Islamabad
12.05.2026
Muhammad Subhan Malik (JLC)/-

Approved for reporting.